

## 1 HOUSE BILL NO. 179

2 INTRODUCED BY B. MITCHELL, K. BOGNER, D. EMRICH, J. FULLER, B. GILLESPIE, C. GLIMM, G.  
3 LAMMERS, T. MCGILLVRAY, B. PHALEN, M. REGIER, J. TREBAS, M. YAKAWICH, D. ZOLNIKOV, E.  
4 ALBUS, B. BARKER, L. BENNETT, M. BERTOGLIO, L. BREWSTER, E. BUTTREY, E. BYRNE, C.  
5 COCHRAN, J. DARLING, L. DEMING, N. DURAM, S. ESSMANN, J. ETCHART, T. FALK, P. FIELDER, S.  
6 FITZPATRICK, J. GILLETTE, S. GIST, R. GREGG, C. HINKLE, J. HINKLE, S. KELLY, G. KMETZ, B. LER, K.  
7 LOVE, S. MANESS, R. MARSHALL, B. MERCER, T. MILLETT, R. MINER, V. MOORE, F. NAVE, A.  
8 NICASTRO, N. NICOL, M. NIKOLAKAKOS, G. OBLANDER, G. OVERSTREET, G. PARRY, A. REGIER, L.  
9 REKSTEN, J. SCHILLINGER, C. SCHOMER, L. SCHUBERT, K. SEEKINS-CROWE, T. SHARP, C.  
10 SPRUNGER, M. THIEL, E. TILLEMANN, M. VINTON, Z. WIRTH, K. ZOLNIKOV

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12 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING LAWS RELATED TO INACTIVE VOTER STATUS;  
13 CLARIFYING THAT A VOTER ON THE INACTIVE LIST IS NOT MOVED TO THE ACTIVE LIST BY SIGNING  
14 A PETITION FOR A STATEWIDE BALLOT ISSUE; AMENDING SECTION 13-2-222, MCA; AND PROVIDING  
15 AN IMMEDIATE EFFECTIVE DATE."

16  
17 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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19 **Section 1.** Section 13-2-222, MCA, is amended to read:

20 **"13-2-222. Reactivation of elector.** (1) The name of an elector must be moved by an election  
21 administrator from the inactive list to the active list of a county if an elector meets the requirements for  
22 registration provided in this chapter and:

23 (a) appears at a polling place in order to vote, submits an application to vote by absentee ballot in  
24 a polling place election or mail ballot election, or votes in a mail ballot election conducted under Title 13,  
25 chapter 19;

26 (b) notifies the county election administrator in writing of the elector's current residence, which  
27 must be in that county; or

28 (c) completes a reactivation form provided by the county election administrator that provides

1 current address information in that county.

2 (2) The name of an elector may not be moved from the inactive list to the active list of a county by  
3 the elector signing a petition for a statewide ballot issue.

4 ~~(2)~~(3) After an elector has complied with subsection (1)(a), (1)(b), or (1)(c), the county election  
5 administrator shall place the elector's name on the active voting list for that county.

6 ~~(3)~~(4) An elector reactivated pursuant to subsection (1)(a) is a legally registered elector for purposes  
7 of the election in which the elector voted."

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9 NEW SECTION. **Section 2. Effective date.** [This act] is effective on passage and approval.

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